

COMMERCIAL LEASE AGREEMENT (No. 00003)

This Commercial Lease Agreement (the "Agreement") is entered into by and between Granite Property Trust ("Party A") and Helios Energy Co. ("Party B").

1. GENERAL PROVISIONS

The failure of either party to enforce any right shall not be deemed a waiver of that right. The parties shall cooperate in good faith to give full effect to the purpose of this Agreement. The parties agree that the terms of this Agreement are confidential and proprietary to the disclosing party. The parties shall cooperate in good faith to give full effect to the purpose of this Agreement.

This Agreement is binding upon and inures to the benefit of the parties and their permitted successors and assigns. Nothing in this Agreement shall be construed to create a partnership, joint venture, or agency between the parties. If any provision of this Agreement is held unenforceable, the remaining provisions shall continue in full force. The parties acknowledge that they have negotiated this Agreement in good faith and at arm's length. Any notice required under this Agreement shall be given in writing to the receiving party's registered address. The parties shall cooperate in good faith to give full effect to the purpose of this Agreement.

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3. CONFIDENTIALITY

The confidentiality obligations of the Receiving Party shall survive termination of this Agreement for a period of 5 years.

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6. TERM AND TERMINATION

Either party may terminate this Agreement for convenience upon 36 days prior written notice to the other party.

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9. LIMITATION OF LIABILITY

The aggregate liability of each party under this Agreement shall not exceed \$1,951,000 in the aggregate, regardless of the form of action.

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12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Arkansas, without regard to its conflict-of-laws principles.

13. GENERAL PROVISIONS

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15. MATTER REFERENCE

This engagement is recorded under matter reference M-1003-00003 and is known internally as Project Daybreak.

16. GENERAL PROVISIONS

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IN WITNESS WHEREOF, the parties have executed this Agreement.

Granite Property Trust

Helios Energy Co.